IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 102

C.P.(CAA)/50(CH)2022
(Second Motion)

IN THE MATTER OF:

Beverly Bakers Limited …Petitioner Companies

Under Section: 230-232 of Companies Act, 2013

Order delivered on 12.01.2024

CORAM:

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

SH. L.N. GUPTA
HON'BLE MEMBER (T)

PRESENT:

For the Petitioner Companies	:	Mr. Anand Chibbar, Senior Advocate with Mr. Vaibhav Sahni, Advocate
For the Official Liquidator	:	Mr. Edward George, Advocate
For the RoC	:	Ms. Kamna Singh, RoC, Chandigarh
For the RD	:	Ms. Susmithaa Selvaraj, RD(NR)

ORDER

This is a second motion petition. It is stated by learned counsel for the Official Liquidator that the report has been filed and there is no objection on behalf of the OL. Similarly, report of RD/ RoC is also available on record, in which it is stated that RoC/RD has no objection to the Scheme. However, there is no representation on behalf of the Income Tax Department, though their counsel was present on 01.05.2022 and thereafter on 05.07.2023, only by sheer indulgence, Income Tax Department is granted one last opportunity to file its report within two weeks with a copy in advance to the counsel opposite, failing which, it will be presumed that Income Tax Department has nothing to say in the matter.

Learned counsel for the petitioner is directed to inform the next date of hearing to the Income Tax Department through email and place a copy of the said email along with an affidavit on record within one week. List the matter on 02.02.2024.

-sd-
(L.N. GUPTA)
MEMBER (T)

-sd-
(HARNAM SINGH THAKUR)
MEMBER (J)

SM